

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

4. KELLY HESKETT V. JACOB HESKETT

25FL0732

On November 19, 2025, Counsel for Petitioner filed a Notice of Motion and Motion to be Relieved as Counsel. Petitioner was served with all required documents on December 11, 2025. The matter was originally set to be heard on February 19th, however the court noted that Respondent had not been served with the moving papers. The matter was continued to allow time for Respondent to be served.

On February 27th Petitioner was served with a Notice of Motion containing the new hearing date. Respondent was served on March 2nd.

Petitioner filed a Responsive Declaration to Request for Order on March 9th. It was served on March 10th.

Counsel states that there has been an irreparable breakdown of the attorney-client relationship. After reviewing the filings, it does appear that there has been a breakdown in the relationship rendering effective representation unlikely. The request is granted. Withdrawal will be effective as of the date of filing the Proof of Service of the formal, signed order upon the client.

TENTATIVE RULING #4: THE MOTION TO BE RELIEVED AS COUNSEL IS GRANTED. WITHDRAWAL WILL BE EFFECTIVE AS OF THE DATE OF FILING PROOF OF SERVICE OF THE FORMAL, SIGNED ORDER UPON THE CLIENT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. MATTHEW HICKS V. TIFFINE CHRISTINE WOODSIDE

22FL0345

On January 12, 2026, Minor's Counsel filed a Request for Order (RFO) seeking custody and visitation orders. The RFO and the Notice of Tentative Ruling were both served on Respondent on January 14th and on Petitioner on January 23rd.

Petitioner filed a Responsive Declaration to Request for Order on March 11th. There is no Proof of Service for this document therefore the court has not read or considered it.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure "as an admission that the motion or other application is meritorious." El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. She had notice of the pending request, and chose not to file an opposition. As such, the court finds good cause to treat her failure to do so as an admission that she is of the opinion that the claims made in the RFO are meritorious.

Minor's Counsel seeks an order allowing Respondent to move to Montana with the minor. She further requests an order allowing the child to hyphenate his last name to add Respondent's last name.

The request to change the child's last name is granted. The child may change his last name to hyphenate and add Mother's last name.

The parties are ordered to appear to select trial and Mandatory Settlement Conference dates on the move-away request.

Minor's Counsel is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: THE REQUEST TO CHANGE THE CHILD'S LAST NAME IS GRANTED. THE CHILD MAY CHANGE HIS LAST NAME TO HYPHENATE AND ADD MOTHER'S LAST NAME.

THE PARTIES ARE ORDERED TO APPEAR TO SELECT TRIAL AND MANDATORY SETTLEMENT CONFERENCE DATES ON THE MOVE-AWAY REQUEST.

MINOR'S COUNSEL IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON